

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen DiFiore	Team: Squad #05	CCRB Case #: 202206365	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 09/20/2022 12:03 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/20/2024	Precinct: 61
Date/Time CV Reported Thu, 09/22/2022 12:30 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/22/2022 12:30 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Claudia Pinzon	14353	966278	061 PCT
2. SGT Smithu Samuel	02294	933322	061 PCT
3. PO Anton Morgulets	18215	958952	061 PCT
4. PO Steven Hu	20562	958712	061 PCT
5. PO Hongming Peng	18008	949463	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Smithu Samuel	Abuse: Sergeant Smithu Samuel entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . SGT Smithu Samuel	Force: Sergeant Smithu Samuel used physical force against § 87(2)(b)	B . Unfounded
C . SGT Smithu Samuel	Abuse: Sergeant Smithu Samuel searched § 87(2)(b) in Brooklyn.	C . Substantiated
D . PO Hongming Peng	Force: Police Officer Hongming Peng used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Claudia Pinzon	Force: Police Officer Claudia Pinzon used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Anton Morgulets	Force: Police Officer Anton Morgulets used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . PO Steven Hu	Force: Police Officer Steven Hu used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . PO Anton Morgulets	Force: Police Officer Anton Morgulets used physical force against § 87(2)(b)	H . Unfounded
I . SGT Smithu Samuel	Abuse: Sergeant Smithu Samuel failed to provide § 87(2)(b) with a business card.	I . Substantiated

Case Summary

On September 22, 2022, § 87(2)(b) filed this complaint by phone with the CCRB. On September 20, 2022, at approximately 12:03 p.m. Sgt. Samuel, PO Pinzon, PO Morgulets, PO Hu, and PO Peng of the 61st Precinct in Brooklyn went to § 87(2)(b) in Brooklyn in response to a 911 call about a fight. At Sgt. Samuel's command, the officers entered the location (**Allegation A: Abuse of Authority, substantiated**). As he entered, Sgt. Samuel allegedly pushed § 87(2)(b) with his shoulder (**Allegation B: Force, unfounded**). The officers, again at Sgt. Samuel's command, followed § 87(2)(b) husband, § 87(2)(b) past the door and into the living room (**Allegation C: Abuse of Authority, substantiated**). The officers, at various different points, forcibly removed § 87(2)(b) from his apartment, after placing him under arrest for assault (Board Review 01) (**Allegations D-G: Force, within NYPD guidelines**). Once outside, PO Morgulets allegedly pulled § 87(2)(b) such that he fell to his knees (**Allegation H: Force, unfounded**). Sgt. Samuel did not offer a business card to § 87(2)(b) (**Allegation I: Abuse of Authority, substantiated**).

The investigation obtained BWC for this incident (Board Review 02, summarized in Board Review 03-04). The investigation also obtained two cell phone videos, one taken by § 87(2)(b) (Board Review 05) and one taken by § 87(2)(b) (Board Review 06).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Smithu Samuel entered § 87(2)(b) in Brooklyn.

Allegation (B) Force: Sergeant Smithu Samuel used physical force against § 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Smithu Samuel searched § 87(2)(b) in Brooklyn.

Allegation (I) Abuse of Authority: Sergeant Smithu Samuel failed to provide § 87(2)(b) with a business card.

It is undisputed that the officers entered the apartment and pursued § 87(2)(b) into his living room, and that they did not offer a business card to § 87(2)(b). The investigation pleaded these allegations solely against Sgt. Samuel as he was the supervisor on scene.

Both § 87(2)(b) (Board Review 07) and § 87(2)(b) (Board Review 08) stated that they never gave consent for officers to enter their home. § 87(2)(b) further stated that Sgt. Samuel pushed her with his shoulder as he entered the apartment.

Sgt. Samuel's BWC comprehensively captures his conversation with § 87(2)(b) and § 87(2)(b) while on scene. After explaining that they are there to arrest § 87(2)(b) for allegedly assaulting his neighbor, § 87(2)(b) says, "If you wanna come in my apartment and get me, come get me. Come, come get me if you wanna get me," while pointing inside his apartment (Board Review 09, at approximately 04:24). At this point, no officer crosses the threshold of the apartment. At 05:03, Sgt. Samuel approaches the threshold of the door, and § 87(2)(b) and § 87(2)(b) both tell him not to come inside. § 87(2)(b) begins to record Sgt. Samuel on his phone. At 05:19, § 87(2)(b) walks into another room and says, "Come in my house." At the same time, § 87(2)(b) says, "No, please don't come in here." PO Morgulets then enters the apartment, followed by PO Pinzon, PO Hu, and PO Peng. Sgt. Samuel himself enters at approximately 06:10. No officer makes physical contact with § 87(2)(b) upon entry.

§ 87(2)(b) cellphone video shows that Sgt. Samuel's foot crossed the threshold of the apartment's door when he first approached (Board Review 05).

Sgt. Samuel affirmed in his testimony that entered the apartment and pursued § 87(2)(b) solely because this was an arrest situation where the perpetrator was identified (Board Review 10).

He affirmed that there was no further legal basis for entering the apartment. He noted that § 87(2)(b) gave consent for the officers to enter, but he also reiterated that the situation did not require consent to make the entry. Upon reviewing the portion of his BWC footage showing § 87(2)(b) telling officers not to come inside, Sgt. Samuel testified that he had not heard her make that remark during the incident. He also testified that her refusal to provide consent would not have changed his decision to enter the apartment. Sgt. Samuel did not offer a business card to § 87(2)(b) because the incident resulted in the arrest of § 87(2)(b) which absolved him of having to proactively provide a business card to anyone on scene.

PO Morgulets' BWC footage shows Sgt. Samuel wave the officers into the apartment right before PO Morgulets and the other officers go inside (Board Review 16, at approximately 28:17).

§ 87(2)(g)

Payton v. New York, 445 U.S. 573 (1980) holds that "searches and seizures inside a home without a warrant are presumptively unreasonable" (Board Review 11).

People v. McBride, 14 N.Y. 3d 440 (2010) holds that "it is axiomatic that warrantless entries into a home **to make an arrest** are presumptively unreasonable" (emphasis added, internal quotes omitted). However, *McBride* also outlined several factors in determining whether exigent circumstances are present, such as the gravity or violent nature of the offense to be charged, whether the suspect is believed to be armed, a clear showing of probable cause, reason to believe that the suspect is in the premises, likelihood of escape, and the peaceful circumstances of entry. While this list of factors is not exhaustive, the Court of Appeals made it clear that there must ultimately be an "urgent" need justifying a warrantless entry made in order to make an arrest (Board Review 12).

Georgia v. Randolph, 547 U.S. 103 states, "A warrantless search of a shared dwelling for evidence **over the express refusal of consent by a physically present resident cannot be justified as reasonable** as to him on the basis of consent given to the police by another resident" (Board Review 13, emphasis added).

Administrative Guide Procedure 304-11 and Administrative Code Section 14-174 state that officers must offer a business card to members of the public upon the conclusion of law enforcement activities, including home searches, that do not result in an arrest or summons (Board Review 14-15).

§ 87(2)(g)

At the time, § 87(2)(b) was suspected of a misdemeanor assault for which the victim was already safely receiving medical treatment.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and C** be closed as **substantiated**.

§ 87(2)(g)

, it is therefore recommended that **Allegation B** be closed as **unfounded**.

As noted above, Sgt. Samuel did not offer a business card to § 87(2)(b) § 87(2)(g)

It is recommended that **Allegation I** be closed as **substantiated**.

Allegation (D) Force: Police Officer Hongming Peng used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Claudia Pinzon used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Anton Morgulets used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Steven Hu used physical force against § 87(2)(b)

Allegation (H) Force: Police Officer Anton Morgulets used physical force against § 87(2)(b)

It is undisputed that officers used varying amounts of force, including pushing, pulling, and grappling to place § 87(2)(b) under arrest.

§ 87(2)(b) testified that officers used force to remove § 87(2)(b) but was unable to describe the force in great detail. She merely asserted that the officers were all bunched together as they pulled him out of the apartment.

§ 87(2)(b) similarly testified that officers grabbed various parts of his body and were pulling his arms and legs as they handcuffed him. He also noted that one officer placed his knee on his thigh as he sat on the couch, preventing him from getting up. The officers escorted § 87(2)(b) out of his home through a combination of pushing and pulling. § 87(2)(b) body went in the direction that the officers pushed and pulled him. § 87(2)(b) denied that he ever fought with the officers.

PO Morgulets' BWC footage shows the officers place handcuffs on § 87(2)(b) and walk him out of the apartment (Board Review 16, at approximately 29:53). PO Pinzon, PO Peng, PO Hu, and PO Morgulets all grab § 87(2)(b) by his arms and attempt to pull them toward his back. § 87(2)(b) keeps his left arm closer to the front of his body as officers attempt to handcuff him. At 30:20, they hoist him up off his couch. The remainder of this portion of the incident is best captured on Sgt. Samuel's BWC (Board Review 09, at approximately 07:19). Officers are continuing to place the handcuffs on § 87(2)(b) who is now standing upright. Officers then escort him toward the exit, occasionally pushing and pulling him toward the exit as he periodically turns back around and yells at the officers for arresting him.

PO Morgulets' BWC footage also shows the later moment that § 87(2)(b) falls to the ground as PO Morgulets holds his left arm (Board Review 16, at approximately 33:10). PO Morgulets and PO Hu hold § 87(2)(b) by opposite arms as they walk him outside. § 87(2)(b) says that he needs EMS and then falls to the ground, asserting that he does not feel well. PO Morgulets holds him as he drops to his knees and asks EMS if they can treat him. § 87(2)(b) is unresponsive to EMS. Based on this footage, the investigation determined that PO Morgulets did not pull § 87(2)(b) to the ground as alleged.

It was not necessary to interview the officers involved to reach dispositions for these allegations.

Patrol Guide Procedure 221-01 states that, "Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody" (Board Review 17).

§ 87(2)(g)

Therefore, it is recommended that **Allegations D-G** be closed as **within NYPD guidelines**.

BWC from PO Morgulets shows § 87(2)(b) fall to the ground on his own as he says that he is not feeling well. § 87(2)(g)

Therefore, it is recommended that **Allegation H** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. § 87(2)(b)
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- Sgt. Samuel has been a member of the NYPD for 19 years and has been a subject in eight other CCRB complaints and 16 other allegations, of which five were substantiated:
 - 202106772 involved a substantiated allegation of refusal to process civilian complaint against Sgt. Samuel. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline.
 - 202105575 involved substantiated allegations of physical force, restricted breathing, and false official statement against Sgt. Samuel. The Board recommended Charges and the NYPD has not yet imposed discipline.
 - 202102419 involved a substantiated allegation of physical force against Sgt. Samuel. The Board recommended Command Discipline B and the NYPD imposed a forfeiture of five vacation days.
 - Sgt. Samuel is currently the subject of a single physical force allegation in CCRB case 202208196. The investigation into this case is ongoing.
 - § 87(2)(g)
- PO Pinzon has been a member of the NYPD for four years and has been a subject in two other CCRB complaints and two allegations, of which one was substantiated:
 - 201907897 involved a substantiated allegation of entry of premises against PO Pinzon. The Board recommended Charges and the NYPD has not yet imposed discipline.
 - § 87(2)(g)
- PO Hu has been a member of the NYPD for seven years and this is the first CCRB complaint to which he has been a subject.
- PO Peng has been a member of the NYPD for 12 years and has been a subject in two other CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Morgulets has been a member of the NYPD for seven years and has been a subject in five other CCRB complaints and ten other allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On January 20, 2023, a request for Notices of Claims was sent to the New York City Office of the Comptroller. The response to this request will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 5

Investigator: Stephen J. DiFiore
Signature

Inv. Stephen DiFiore
Print Title & Name

February 13, 2023
Date

Squad Leader: Daniel Giansante IM Daniel Giansante February 13, 2023
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date